NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Reclamation

[No. 57]

KLAMATH PROJECT, OREGON AND CALIFORNIA TULE LAKE DIVISION, PARTS 1 AND 2

NOTICE EXTENDING DEVELOPMENT PERIOD AND THE DATE FOR PAYMENT OF CERTAIN CHARGES

NOVEMBER 28, 1955.

In connection with this Public Notice, the following should be noted:

A. Since the issuance on August 25, 1955, of Public Notice No. 56, Tule Lake Division, Part 1, the negotiation of a joint liability repayment contract with the Tule Lake Irrigation District which District includes most of the entered and unentered public lands of the Tule Lake Division, has been intensified and brought to a successful conclusion. The proposed contract will supersede and take the place of the individual water right contracts referred to in Public Notice No. 56.

B. The Secretary of the Interior on November 9, 1955, approved as to form a draft of repayment contract (Draft 10/17/55; Rev. W. O. 11/4/55) proposed to be entered into with the Tule Lake Irrigation District.

C. The Board of Directors of the Tule Lake Irrigation District has approved the form of the proposed contract referred to in B above, and has indicated that it will submit the contract for approval of the District landowners at an election to be held for that purpose in the immediate future and further will urge the Dirtict landowners to vote favorably on the contract.

D. Before the proposed contract can be executed on behalf of the District, the landowners must vote favorably on the contract and, pursuant to California law, certain other legal processes must be completed. Before the contract can be executed on behalf of the United States, the contract must be submitted to the Congress for legislative approval pursuant to Section 7 of the Reclamation Project Act of 1939.

E. Inasmuch as District Board action approving the form of the proposed contract has greatly enhanced the possibility of there being a valid executed repayment contract with the Tule Lake Irrigation District before the end of the 1956 irrigation season and in order to permit adequate time to complete the actions prerequisite to obtaining such an executed contract, and to provide a basis for the continuance of water deliveries to certain lands of the Tule Lake Division, it is desirable that Public Notices Nos. 55 and 56 be amended by the issuance of the Public Notice which follows:

1. Public Notice No. 56, dated August 25, 1955, establishes a date of December 1, 1955, for the payment of certain construction charges. The date for the initial installment due under this Notice is advanced from December 1, 1955, to December 1, 1956, and all other dates are accordingly advanced 1 year.

2. The development period established for certain lands of Tule Lake Division, Parts 1 and 2 in Public Notice No. 55, which is to expire on December 31, 1955, is hereby extended to November 30, 1956.

[SEAL] FRED G. AANDAHL,
Assistant Secretary of the Interior.

[F. R. Doc. 55-9679; Filed, Dec. 2, 1955; 8:45 a. m.]

Office of the Secretary

[Order No. 2583, Amdt. 13]

LANDS AND RESOURCES: BUREAU OF LAND MANAGEMENT

DELEGATION OF AUTHORITY

NOVEMBER 28, 1955.

Order No. 2583, as amended (15 F. R. 5643, 6997; 16 F. R. 6805; 17 F. R. 7513, 10486; 18 F. R. 161, 3446, 5715; 19 F. R. 1021, 1937, 2555, 5919, and 6126), is further amended as follows:

1. Section 2.13 is amended to read:

SEC. 2.13 *Roads.* Matters involving the acquisition of rights-of-way and roads under the Act of July 26, 1955 (69 Stat. 374), including purchases after clearance with the Department of Justice but not including recommendations to the Attorney General for condemnation proceedings; also the approval of projects for the construction of roads to provide access to the timber on public lands subject to that act.

2. Section 2.45 is amended to read:

SEC. 2.45 *Mining claims.* Claims pursuant to the General Mining Laws and laws supplemental thereto, and 43 CFR Parts 69, 185, and 186.

3. Paragraph (a) of section 2.72 is amended to read:

SEC. 2.72 *Rights-of-way.* (a) Right-of-way permits and easements over public and acquired lands, including revested Oregon and California Railroad and reconveyed Coos Bay Wagon Road grant lands in Oregon, and over reservations other than Indian reservations, when authorized by law, and rights-of-way over the Outer Continental Shelf pursuant to 43 CFR Part 202. However, only the Secretary of the Interior may issue an order, pursuant to 43 CFR 244.9 (m), requiring the discontinuance, without liability or expense to the United States, of the use of a right-of-way for the purpose granted.

[SEAL] DOUGLAS MCKAY,
Secretary of the Interior.

[F. R. Doc. 55-9680; Filed, Dec. 2, 1955; 8:45 a. m.]

[1375265]

COLORADO, WYOMING, UTAH

MODIFYING DEPARTMENTAL ORDERS OF MAY 29, 1930, WHICH CONSTRUED OIL SHALE WITHDRAWALS MADE BY EXECUTIVE ORDER NO. 5327 OF APRIL 15, 1930

The three orders of the Secretary of the Interior dated May 29, 1930, construing Executive Order No. 5327 of April 15, 1930, entitled "Withdrawal of Public Oil Shale Deposits and Lands Containing Same for Classification", in part to apply to all lands which were indicated upon maps of the States of Colorado, Utah, and Wyoming, as oil shale lands, upon the margin of which maps the said orders were endorsed, are hereby modified to the extent necessary to provide that a classification by the Geological Survey, heretofore or hereafter made, of any of the lands delineated upon the maps, as being in fact non-oil shale in character, shall constitute an amendment, as of the date of the classification, of the order or orders of May 29, 1930, and an exclusion of the lands from the area or areas delineated upon such maps.

[SEAL] DOUGLAS MCKAY,
Secretary of the Interior.

NOVEMBER 28, 1955.

[F. R. Doc. 55-9678; Filed, Dec. 2, 1955; 8:45 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

TRANSFER OF CERTAIN FUNCTIONS AMONG DEPARTMENTAL AGENCIES

Pursuant to the authority contained in section 161, Revised Statutes (5 U. S. C. 22) and Reorganization Plan No. 2 of 1953, sections 200, 300, and 400 of the Secretary's order of December 24, 1953 (19 F. R. 74), are amended and supplemented (1) to assign to the Agricultural Research Service the use, administration and disposition under Title III of the Bankhead-Jones Farm Tenant Act (7 U. S. C. 1010-1012) and the related provisions of Title IV thereof of lands heretofore transferred or hereafter transferred with the approval of the Assistant Secretary; (2) to except the administration of the Brooksville Nursery in Hernando County, Florida, from the Title III functions assigned to the Soil Conservation Service; and (3) to exclude the administration of the Title III lands heretofore or hereafter transferred to the Agricultural Research Service from the functions assigned to the Forest Service, and to read as follows:

1. SEC. 200. *Assignment of functions.*
* * *

1. The use, administration and disposition under Title III of the Bankhead-Jones Farm Tenant Act (7 U. S. C. 1010-1012) and the related provisions of Title IV thereof of lands which have heretofore been transferred or which hereafter may be transferred by agreement